

25STLC04665 25STLC04665

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STLC04665 Hearing Date: August 18, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Laurack D. Bray's Motion for Sanctions is denied.

Analysis:

On June 17, 2025, Plaintiff Laurack D. Bray ("Plaintiff"), in propria persona, filed the Complaint in this action against Defendant Gene Brown ("Defendant"). Plaintiff then filed a First Amended Complaint on July 11, 2025. On November 17, 2025, the Court sustained Defendant's Demurrer to the First Amended Complaint as to the first, third, fourth, fifth, and sixth causes of action with leave to amend, and overruled it as to the second cause of action.

Plaintiff filed the Second Amended Complaint on December 3, 2025. On December 30, 2025, Defendant filed a "Demurrer to Plaintiff's First Amended Complaint." At the hearing on January 28, 2026, the Court ordered the Demurrer stricken on its own motion and that Defendant file and serve an answer to the Second Amended Complaint within 20 days. (Minute Order, 01/28/26.)

Defendant filed an Answer to the Second Amended Complaint on February 13, 2026 with an incorrect caption. A month later, Defendant filed another Answer to the Second Amended Complaint correcting the mistake. On April 2, 2026, Plaintiff filed a proof of service of Notice and Verified Motion for Sanctions Pursuant to CCP 128.5. Plaintiff then filed the instant Motion for Sanctions on May 5, 2026, and a reply in support of the Motion on July 2, 2026. At the initial hearing on July 21, 2026, the

Court noted that Plaintiff's reply referred to an opposition served by Defendant with respect to this Motion, but that no opposition was on file. (Minute Order, 07/21/26.) The opposition was filed the same day. (Opp., 07/21/2026.) The Court continued the hearing to give Defendant an opportunity to file the opposition and ordered that no further papers be filed with respect to the Motion. (Minute Order, 07/21/2026.) On July 27, 2026, Plaintiff filed a sur-reply to the opposition.

Discussion

The Court will not consider Plaintiff's sur-reply, which was filed in violation of the July 21, 2026 minute order which stated expressly that the Court would not consider additional papers. (Minute Order, 07/21/2026, p. 2.)

Plaintiff's Motion for Sanctions

is brought pursuant to Code of Civil Procedure section 128.5, which provides that the judge may order a party or counsel, or both, "to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (a).) "Actions or tactics" include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading." (Code Civ. Proc., § 128.5, subd. (b)(1).) "Frivolous" means totally and completely without merit or for the sole purpose of harassing an opposing party." (Code Civ. Proc., § 128.5, subd. (b)(2).) Subjective bad faith conduct is "taken without " 'honest belief in the propriety or reasonableness' " of said conduct. (In re Marriage of Sahafzadeh-Taeb & Taeb (2019) 39 Cal.App.5th 124, 136.) The statute provides for a 21-day safe harbor provision during which the offending pleading or paper may be withdrawn or appropriately corrected before any motion for sanctions may be filed. (Code Civ. Proc., § 128.5, subd. (f)(1)(B).) "In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence." (Code Civ. Proc., § 128.5, subd. (f)(1).)

Plaintiff argues that Defendant should be sanctioned for the following conduct: (1) asserting a demurrer for uncertainty after the Court ruled that special demurrers are not permitted; (2) failing to give notice of the final ruling dated November 17, 2025 as ordered by the Court; (3) serving Plaintiff with notice of his intention to gain access to the premises for viewings by taping the notice to the front door, then having the tenant arrive

late and stay past the viewing window; (4) serving Plaintiff with notices of his intention to gain access to the premises for viewings by taping the notice to the front door, then failing to show up; and (5) failing to appear at the last two Court hearings.

The safe harbor provision applies to the arguments regarding the Demurrer. (See Code Civ. Proc., § 128.5(f)(1)(B).) As noted, Plaintiff contends that Defendant's Demurrer filed on December 30, 2025 was improperly brought on the basis of uncertainty. The instant Motion for Sanctions, however, was not served on Defendant until more than four months after the Demurrer, leaving Defendant no time to withdraw the Demurrer or correct it. Even without addressing whether the conduct is sanctionable under § 128.5, sanctions are not available for this conduct due to failure to comply with the safe-harbor provision.

The Court also denies the Motion for failure to identify sanctionable conduct. Plaintiff contends the Demurrer for uncertainty was frivolous because Defendant was previously told by the Court that special demurrers are not permitted in the Limited Civil Court. The Court's prior order does render the arguments frivolous and without merit. (See Code Civ. Proc., § 128.5(b)(2).) Likewise, clearly, Defendant should have given notice of the November 17, 2025 ruling, as the Court ordered. (Minute Order, 11/17/2025.) However, the Court does not find either of these actions established as taken in bad faith, which is a distinct requirement under the statute. (See *Levy v. Blum* (2001) 92 Cal. App. 4th 625, 635-636 ("Section 128.5 requires much more than a party acting with 'no good reason' to justify an award of sanctions. There must be a showing not only of a meritless or frivolous action or tactic, but also of bad faith.")) If every pleading deficiency or failure to give notice were, without more, treated as sanctionable, it would create an incentive for parties to comb each others' pleadings for error or technical non-compliance and flood the proceedings with sanctions motions that would do little to actually get the case resolved. The Court will not grant motions for sanctions that do not make the required bad-faith showing. Failure to give notice of a ruling as ordered is certainly significant, however Plaintiff's arguments do not show bad faith in this case. Any inference of prejudice or bad-faith related to failure to give notice is mitigated by Plaintiff's presence at the November 17, 2025 hearing.

The other conduct is likewise not sanctionable under the moving state. Showing up late for or failing to appear for viewings of the premises after notice does not appear to be an "action or tactic" within the scope of the rule, which on its face focuses on matters filed with the Court or that may delay proceedings. (See Code Civ. Proc., § 128.5, subd. (b)(1).) Plaintiff does not identify authority expanding it to disregard of a scheduled appointment for viewing. The Court is also not prepared to find bad faith based on the two incidents described.

Finally, the Court sees no basis to find that Defendant's failure to appear for court sanctions on December 30, 2025 and January 28, 2026 comprises bad-faith litigation conduct. No hearing was held on December 30, 2025, so it is not clear what failure to appear is alleged for that date. On January 28, 2026, the Court held a hearing on Defendant's Demurrer to the Second Amended Complaint. (Minute Order Jan. 28, 2026.) The Court posted a tentative before the hearing, and following the hearing, adopted its tentative, in which the Court declined to consider Plaintiff's Opposition because it was late, but the Court struck the Demurrer and ordered Defendant to file an Answer because Defendant failed to meet and confer. Assuming § 128.5 can ever be applied to make sanctionable a party's failure to appear at a hearing on its own motion, which resulted in a ruling against that party, that section does not apply here.

Based on the foregoing, the Court finds that none of the conduct of which Plaintiff complains, in whole or in part, is grounds for sanctions under Code of Civil Procedure section 128.5.

Finally, to the extent Plaintiff asks the Court to strike the Answers to the Second Amended Complaint filed on February 13, 2026 and March 13, 2026, the Motion cites no legal authority beyond section 128.5 to strike a pleading. Section 128.5, however, does not give the Court the authority to strike a pleading as a sanction.

Conclusion

Plaintiff Laurack D. Bray's Motion for Sanctions is denied.

Judicial Assistant to give notice.